PURCHASE ORDER

Coca-Cola Beverages Pakistan Ltd.

Bill To: Coca-Cola Beverages Pakistan Ltd.

Supplier OASIS PACKAGING INDUSTRIES (PVT) LIMITED
LAHORE

Phone 924235297716
Fax 4235297718
SAP Vendor No 100007145
Payment Terms (060)60 Days

Coca-Cola Beverages Pakistan Ltd.
Tax Office:
Tax Number:
Purch. Order: 4500509959
Date: 02.01.2024
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No	Material	Description	Qty.	Un	Location	DlvDate.	Price	Cr.	Unit Qty.
MRP: 53th WEEK - REQ: 02th WEEK									
Available stock for coverage of 20 day									
Ordered quantity will cover 8 days									
10	410-003-557	SHRINK 35.5CM 50-MICRONS	**3.000,00**	KG	**Gujranwala**	31.03.2024	130.00	PKR	1
MRP: 53th WEEK - REQ: 02th WEEK									
Available stock for coverage of 20 day									
Ordered quantity will cover 8 days									
						Amount		PKR	**390,000.00**
20	410-000-583	SHRINK 41CM-60MICRON	**15.000,00**	KG	**Gujranwala**	31.03.2024	130.00	PKR	1
						Amount		PKR	**1,950,000.00**

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Amount 2,340,000.00

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Note: This is a system generated document and does not require signatures.

Special Instructions:

(i) The company will withhold sales tax as per prevailing rates. In case we are not provided with vendor#s National Tax Number (NTN) additional 18% will be withheld on all payments made.

(ii) Input tax disallowed by tax authorities due to unfiled tax returns of the vendor will be charged back.

(iii) The company will deduct withholding tax according to vendor#s business type (limited liability company or unincorporated business) at the prevailing rates before making any payment.

(iv) Vendor is responsible to provide us with accurate data and all related supporting documents, any penalty / additional tax imposed by tax authorities due to incomplete vendor data will be charged back to the vendor.

TERMS & CONDITIONS OF PURCHASE ORDER(4500509959)

These standard terms and conditions applicable to Purchase Order(s) issued by CCBPL ("PO") shall: (i) be binding upon the Vendor/Supplier/Contractor ("Vendor") and its successors and assigns, described in the PO; (ii) constitute an Agreement (together with all Annexes) between the parties; (iii) remain valid and binding untill discharge of all the obligations and performances undertaken by the Vendor to the satisfaction of CCBPL. and (iv) In the event of a conflict between the Agreement and the Purchase Order, the terms and conditions of the Agreement shall prevail.

1. SUPPLY

(a) The Vendor shall provide the required Goods, Equipment and/or Services to CCBPL on CFR basis by sea or air to the city as instructed by CCBPL.

(b) The Vendor shall be responsible for transportation of the Goods and/or Equipment from destination port to CCBPL's site designated for installation of the Equipment, unless otherwise agreed between the parties.

(c) The Vendor hereby undertakes to deliver the Goods and/or Equipment to CCBPL within the prescribed time mentioned at the face of this PO.

(d) The Vendor undertakes that the Goods and/or Equipment supplied under this Agreement are new, unused and free from defects in workmanship or materials.

2. PRICE, PAYMENT, SECURITY & WARRANTY

(a) The total fix agreed price of the Goods and/or Equipment (the "Price") as listed in this PO, is inclusive of all packaging, freights, insurances, custom duties, taxes, levies transportation, testing, installation, commissioning etc, unless otherwise agreed to between the parties.

(b) The Vendor, at its own cost, shall arrange visitation of CCBPL's authorized representative(s) to its Factory for prior inspection and testing of the Goods and/or Equipment, if so desired by CCBPL.

(c) Advance payment, if any, at the time of confirmation of this PO shall be made subject to presentation of irrevocable bank guarantee acceptable to CCBPL. Such bank guarantee shall remain valid until issuance of an acceptance certificate by CCBPL. The remaining payments shall be made as agreed to between the parties, however, a certain portion of the Price may be withheld until successful and satisfactory completion of all the activities undertaken by the Vendor. All payments subsequent to advance payment shall be made subject to issuance of relevant certificate(s) by CCBPL.

(d) CCBPL may withhold up to 10% of the Price unless the Vendor provides an irrevocable bank guarantee upto 10% of the Price which shall remain valid for the duration of warranty period. The Vendor shall be responsible for any expenses incurred in connection with the replacement of Goods and/or Equipment or procurement of parts during warranty period.

(e) The Vendor confirms and gives warranty that the Goods and/or Equipment are manufactured in accordance with technical specification, requirements and standards of the ISO 9001: 2000.

(f) If the Vendor is providing Services, as defined in the PO or relevant offer document, then the Vendor shall furnish performance bond, as acceptable to CCBPL, equal or upto 20% of the value of the Services.

(g) All payments to Vendor are subject to deduction of taxes under the applicable laws.

3 TERMS OF DELIVERY

(a) Vendor shall inform CCBPL at least 30 days before the Goods and/or Equipment is ready for shipment. CCBPL will be free not to sign the inspection certificate or refuse to purchase without any liability in case the Goods and/or Equipment is not ready or not manufactured as per the order confirmation.

(b) Vendor undertakes to supply spare parts or compatible substitutes duly tested thereof, required for satisfactory performance of the Goods and/or Equipment for a period of 10 (ten) years from the date of issuance of acceptance certificate.

(c) The Vendor shall be liable to pay liquidated damages at the rate of 1% of the Price for every day up to maximum of 10% of the Price for delay in prescribed delivery, installation and/or commissioning time.

(d) Vendor shall be responsible for storage and transportation of Goods and/or Equipment and shall be liable for any damage to the Goods and/or Equipment caused by any reason whatsoever.

4. OBLIGATIONS OF THE VENDOR

(a) The Vendor is all time responsible for the scope of supply according to the requirements and designate one contact person for all communications with CCBPL representative.

(b) The Vendor shall not sub-contract without the prior written approval of CCBPL.

(c) The Vendor and its employees/agents/sub-contractors shall at all times comply with the provisions of the Supplier Guiding Principles and Code of Business Conduct for Suppliers to The Coca Cola Company, provided to the Vendor separately, as integral part of this Agreement.

(d) The Vendor at all times is responsible and liable for the satisfactory discharge of its obligations towards CCBPL.

(e) In the event, Vendor fails to deliver the Goods, Equipment and/or Services as required by CCBPL for any reason whatsoever, CCBPL may purchase/render the Goods, Equipment and/or Services from any vendors at their price. The variation in the price shall be paid by the Vendor together with compensation for all damages suffered by CCBPL.

5. TERMINATION

(a) CCBPL without any penalty, liability or damages to CCBPL may terminate the Agreement by giving notice, if the Vendor fails, at CCBPL's sole discretion, to comply with any of the terms and conditions of this Agreement and the Vendor hereby agrees to reimburse the advance payments or any other payments made by CCBPL hereunder in respect of the Goods and/or Equipment or upon failure of the Vendor, CCBPL shall be entitled to en-cash the bank guarantee.

(b) Notwithstanding anything contained herein, CCBPL shall have the right to terminate the Agreement without assigning any reason by giving seven (7) days to t he Vendor without any claim or liability of whatsoever nature towards the Vendor. However, CCBPL shall be entitled to claim or recover any or all payments made to the Vendor and the Vendor hereby unconditionally undertakes to refund the same to CCBPL on first demand.

6. NOTICES

All notices, requests, demands and other communications hereunder shall be in writing and shall be given by letter or by facsimile confirmed by fax ok receipt or will be sent by first class registered post or via courier addressed to the other party at the addresses for service as mentioned at the face of PO, which will be deemed to have been received within three working days after its dispatch.

7. FORCE MAJEURE

Neither Party to this Agreement shall be liable for delays caused by an event of natural disaster, casualty, Acts of God, riots, terrorist acts, governmental acts or any such other event of similar nature that is beyond the delaying Party's control; provided however, that such Party shall not have contributed in any way to such event.

8. GOVERNING LAW & ARBITRATION

(a) This Agreement is governed by and shall be construed in accordance with the laws of Pakistan.

(b) All unsettled dispute or differences, which can not be resolved amicably, shall be referred for settlement to a single arbitrator appointed by the mutual agreement of the parties in accordance with and subject to the provisions of the Arbitration Act, 1940 or any statutory modification thereof for the time being in force.

(c) It is expressly agreed that the venue for the said arbitration shall be Lahore - Pakistan, and that arbitration proceedings or any suit to determine or enforce the rights of either partyunder or in respect of this Agreement and/or arising out of the Agreement shall be instituted before the arbitrator in Lahore or the courts having ordinary original civil Jurisdiction in Lahore.

9. CONFIDENTIALITY

Vendor recognizes that during the execution of this Agreement, certain confidential information concerning CCBPL will be furnished by CCBPL to the Vendor n connection with this Agreement and the Vendor hereby expressly undertakes not to disclose such information except to such persons who have a need to know such information. Should Vendor be legally compelled to disclose Confidential Information, Vendor shall promptly provide a written notice to CCBPL so CCBPL may, in its absolute discretion, seek appropriate recourse.

10. INDEMNITY

Vendor must deliver Goods, Equipment and/or Services that are: (a) of the quality, quantity and description required by CCBPL; and (b) free from any right or claim of a third party,including rights based on industrial property or other intellectual property. Vender shall indemnify, hold and save harmless and defend at its own expense CCBPL, its officials,agents, servants and employees from and against all suits, claims, demands and expenses arising out of acts or omissions of the Vendor or its employees, agents, or subcontractors in the performance of this Agreement. This requirement shall extend to claims or liabilities in the nature of workmen's compensation and to claims or liabilities arising out of the use of patented inventions or devices.

11. LIABILITY

CCBPL shall not be liable for any personal injury or property damage suffered by the employees and/or any subcontractor of the Vendor in the performance of Vendor's obligations under this Agreement/PO. Vender hereby holds CCBPL free and harmless and indemnified from any claims arising in respect thereof. Furthermore, CCBPL shall not be liable in any way for failure in the acceptance of Goods or Equipment, if the same are rendered unfit for their intended use or are destroyed by event of Force Majeure or for any other reason(s).

12. MISCELLENEOUS

(a) Waiver: No forbearance by either party to enforce any provision under this Agreement or any right existing under this Agreement shall constitute a waiver of such provisions or rights or be deemed to amend or modify this Agreement.

(b) Relationship of Parties: Each party is acting as an independent contractor, and such party's personnel (including its subcontractors) shall not be considered or represented as employees or agents of the other party. Neither party is an agent of the other and has no authority to represent that party as to any matters.

(c) Assignment: Vendor shall not assign, transfer, pledge or make other disposition of this Agreement or any part thereof or of any of the Vender's rights, claims or obligations without the prior written consent of CCBPL.

(d) Third Party Beneficiaries: This Agreement shall not be deemed to create any rights in third parties, including suppliers and customers of a party, or to create any obligations of a party to any such third parties.

(e) Entire Agreement: This Agreement shall constitute the entire and exclusive statement of the rights, obligations, and understandings of the parties with respect to Goods, Equipment & Services and any other subject matter herein discussed. The terms of this Agreement may only be amended through a duly executed written instrument.

(f) Severability: Upon determination that any term or other provision is invalid, illegal or incapable or being enforced, the parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the parties as closely as possible.

13. The Contractors are liable to follow the Environmental, Health & Safety Standards of the Company.

PENALTY:

(a). The Company can issue penalty to address contractors' failure to comply with these requirements as a minimum criteria.

EHS Compliance	Penalty
Improper Harness / no dual lanyard harness	$100.00
No safety shoes	$100.00
No life line system used	$150.00
No hard hat	$100.00
No eye protection for hot works	$100.00
Smoking in non-smoking area	$100.00
Incduction training is not taken	$100.00
No LOGO implementation (per each case)	$250.00
No work permit taken	$150.00
Working under the influence of alcohol	$500.00
No test while working in confined space	$250.00
Determination of assignment of tier-subcontractor without COMPANY's approval	$250.00
Damaged electrical instruments being used (grinder, drill, cable, Hilti, etc.)	$100.00
Determination of bad housekeeping, left over wastes	$100.00
Refusal to follow safety instructions	$100.00
Not using chokes while loading and unloading of the operations of the trucks/trailers	$100.00
Determination of not reporting an incident to COMPANY that occurred on site	$100.00
Determination of the vehicle/vehicles all seats are lack of safety belts/laps	$100.00
Working on unapproved working platform/scaffolding	$250.00

(b). The Contractor is liable for all damages incurred during execution of work.

(c). The Company has the right to stop the job or remove any contractor, contractor employee or subcontractor from plant property for violations of any plant rules, regulations or laws.